

ADDENDUM 52.212-2 – EVALUATION FACTORS FOR AWARD

1. PURPOSE

- a. The Government will use RFO Part 12.2 Solicitation, Evaluation, and Award to evaluate offers submitted in response to the solicitation. The factors that shall be used to evaluate proposals are **Technical Capability and Price**, as expounded below. All Evaluation Factors are equal in importance; however, a proposal is unawardable at any price if, after final evaluation, the Technical Factor receives a rating of “Unacceptable”. The evaluation does not permit tradeoffs between price and non-price factors. Award will be made to the responsible offeror who submits a proposal that (1) conforms to the requirements of the solicitation; (2) receives a rating of “Acceptable” on the Technical Evaluation Factor; and (3) submits the proposal with the lowest Total Evaluated Price (TEP), provided that the TEP is not unbalanced and is fair and reasonable. The Government reserves the right to award no contract at all depending upon (1) the quality of proposals received and (2) the fair and reasonableness of the pricing of proposals received.

Rating	Description
Acceptable	Proposal clearly meets the minimum requirements of the solicitation.
Unacceptable	Proposal does not clearly meet the minimum requirement of the solicitation.

Offerors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as factors or sub-factors. Failure to comply with the terms and conditions of the solicitation may result in the offeror being ineligible for award. Offerors must clearly identify any exception to the solicitation terms and conditions and must provide complete supporting rationale. The Government reserves the right to determine any such exceptions unacceptable and the proposal, therefore, ineligible for award.

2. TECHNICAL CAPABILITY

- a. A decision on the technical acceptability of each offeror’s Mission Capability Proposal shall be made. Each proposal will be assigned a rating of Acceptable or Unacceptable.
- b. Each offeror must show evidence of a capability to provide the mandatory requirements set forth in the Performance Work Statement (PWS) and elsewhere in this solicitation. A technical review team composed of key Government personnel will use their technical skills, knowledge and experience to thoroughly review the adequacy of the proposals. In evaluating the Mission Capability Proposal, the Government will use the following evaluation criteria:
- (1) Compliance with the requirements of the Performance Work Statement (PWS) and this entire solicitation.

- (2) Understanding of the requirements of the Performance Work Statement (PWS) and this entire solicitation.
 - (3) Compliance and understanding of the requirements of the PWS as applied specifically to each factor/subfactor listed below.
- c. The following specific factors and subfactors will be evaluated in the Technical Capability Proposal. Any factor or subfactor determined unacceptable will render the entire Technical Capability Proposal as unacceptable. Upon final determination that a proposal is unacceptable, the Contracting Officer (CO) shall promptly notify the firm submitting the proposal that it will not be considered for award and shall indicate in general terms the basis for the determination.
- d. Technical Capability Evaluation Factors and Sub Factors are as follows:
- (1) SUBFACTOR 1: Pickup Times (PWS 3.1)
 - i. **Description:** The offeror shall provide a comprehensive and realistic execution plan detailing their approach to meeting all pickup time requirements outlined in Performance Work Statement (PWS) Section 3.1.
 - ii. **Measure of Merit:** This measure is met when the proposal demonstrates a clear understanding of the scheduling requirements and provides a detailed, realistic plan that explicitly shows how all pickup times will be consistently achieved.
 - (2) SUBFACTOR 2: Contractor Furnished Items and Services (PWS Section 3.3)
 - i. **Description:** The offeror shall submit a detailed narrative explaining how they will supply, manage, and maintain all Contractor Furnished Items and Services required by PWS Section 3.3.
 - ii. **Measure of Merit:** The measure of merit is met when the offeror submits a detailed narrative of how the contractor plans to meet the requirements listed in PWS Section 3.3. Your narrative must show a clear understanding of the requirements and a descriptive plan that details how your team will perform all requirements.
 - (3) SUBFACTOR 3: Prior Experience
 - i. **Description:** The offeror shall provide documented evidence of performing services similar in scope and complexity to the work defined in the PWS within the past three (3) years. This includes the transportation, treatment, and disposal of infectious waste and international garbage.
 - ii. **Measure of Merit:** This measure of merit is met when the offeror provides proof of having performed infectious waste and international garbage transportation, treatment, and disposal for items outlined in the PWS. The offeror must provide evidence that it has provided services similar in scope to the work defined in the PWS and accomplished these services within the past three years. Proposals shall reflect past experience details to include locations and customers contact information, types and quantities of services provided, and frequency of service.

(4) SUBFACTOR 4: Treatment Facility Licenses (PWS Section 3.3)

- i. **Description:** The offeror shall submit current, valid copies of all required Treatment Facility Licenses encompassing the incineration and autoclaving of infectious and Animal and Plant Health Inspection Service (APHIS) waste.
 - ii. **Measure of Merit:** This measure of merit is met when the offeror provides copies of all Treatment Facility Licenses for incineration and autoclaving infectious/APHIS waste. Licenses must be current and encompass incineration and autoclaving of infectious/APHIS waste in order to be deemed acceptable.
- e. The above specified technical factors/subfactors will be evaluated in the Technical Capability Proposal. Any subfactor judged unacceptable may render the entire Technical Capability Proposal as unacceptable. Upon final determination that a proposal is “unacceptable”, the Contracting Officer shall promptly notify the firm submitting the proposal that it will not be considered for award and shall indicate the basis for the determination.

3. **PRICE**

- a. Price proposals will be evaluated for (1) completeness, (2) unbalanced pricing, (3) fair and reasonableness, and (4) Total Evaluated Price (TEP). Offerors whose price is determined to be incomplete, significantly unbalanced or contains otherwise unbalanced pricing that poses an unacceptable risk to the Government, or unreasonable will not be considered for award.
- (1) **Completeness:** The Government will review the pricing submissions for completeness and compliance with solicitation clause RFO 52.212-1 and Attachment 1—Additional Instructions to Offerors.
 - (2) **Unbalanced Pricing:** The Government will analyze each proposal to determine whether they are unbalanced with respect to prices proposed on different Contract Line Items Numbers (CLINs) for the same or similar services and/or supplies in the same or similar quantities and with respect to option pricing. An offer may be rejected if the Contracting Officer (CO) determines that the option prices are significantly unbalanced or that otherwise unbalanced pricing poses an unacceptable risk to the Government.
 - (3) **Fair and Reasonableness:** The offeror’s Price proposal will be evaluated using one or more of the techniques defined in RFO 15.404, Cost and/or Price Analysis, in order to determine if it is reasonable. For a price to be reasonable, it must represent a price to the Government that a prudent person would pay in the conduct of competitive business. Normally, price reasonableness is established through price analysis techniques as described in RFO 15.404-1(b), Price analysis. For additional information, reference RFO 31.201-3, Determining Reasonableness.
 - (4) **Total Evaluated Price (TEP):** The Government will add the total price for all options to the total price for the basic requirement to arrive at a total evaluated price (TEP). The TEP will be calculated as:

- i. The sum of the extended prices (pounds multiplied by the price per pound) for years 2026-2031.
- ii. The table below illustrates calculation of a proposal's TEP using the methodology described above. The table is provided for illustration purposes only. Prices reflected in the table are notional and in no way reflect the actual value of the requirement or an actual evaluation of proposed prices submitted in response to this solicitation or any other solicitation for the same or similar requirements.

Fiscal Year	Type of Waste	Price per Pound	Estimated Pounds	Est. Total Cost
2026	Infectious Waste	\$.50	145,235	\$72,617.50
2026	International Garbage	\$.50	610	\$305.00
2027	Infectious Waste	\$.52	148,140	\$77,032.80
2027	International Garbage	\$.52	620	\$322.40
2028	Infectious Waste	\$.54	151,100	\$81,594.00
2028	International Garbage	\$.54	630	\$340.20
2029	Infectious Waste	\$.56	154,125	\$86,310.00
2029	International Garbage	\$.56	645	\$361.20
2030	Infectious Waste	\$.58	157,200	\$91,176.00
2030	International Garbage	\$.58	660	\$382.80
			Total Evaluated Price	\$410,441.90

4. EVALUATION PROCESS

- a. The Government will initiate concurrent evaluation of all evaluation factors on all proposals. The Government will consider, throughout the evaluation, the "correction potential" of a proposal including whether any proposal deficiency can be rectified and whether any uncertainty can be resolved. The judgment of such "correction potential" is within the sole discretion of the Government.
- b. If pursuant to initial evaluation, the Government rates the Technical factor as "Unacceptable" or if the Government determines that there is some other deficiency or uncertainty relative to an offeror's proposal, and in the Government's judgment, the deficiency is rectifiable or the uncertainty is resolvable; the Contracting Officer (CO) may open discussions and may continue discussions as long as, in the Government's judgment, the deficiency is rectifiable or the uncertainty is resolvable.
- c. For the purpose of conducting discussions, if the Government rates the Technical factor as "Unacceptable" or if the Government determines that there is some other deficiency or

uncertainty relative to an offeror's proposal, the entire proposal will be rated "Unacceptable." At the conclusion of discussions, if the Technical factor is rated "Unacceptable" or if any deficiency or uncertainty relative to the proposal has not been unresolved, evaluation of that proposal will be considered final. The entire proposal will be rated "Unacceptable" and no further consideration will be given to that proposal for award.

- d. For the purpose of award without discussions, if pursuant to initial evaluation, the Government rates the Technical factor as "Unacceptable" or if the Government determines that there is some other deficiency or uncertainty relative to an offeror's proposal, notwithstanding that any deficiency may be rectifiable or any uncertainty may be resolvable, the entire proposal will be rated "Unacceptable," the initial evaluation will be the final evaluation, and no further consideration will be given to that proposal for award.
 - e. The Government reserves the right to create a competitive range if it is in the best interest of the Government.
5. A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.